

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Patrick Yu	Team: Squad #16	CCRB Case #: 201507805	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 09/06/2015 9:05 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/6/2017	Precinct: 42		
Date/Time CV Reported Mon, 09/07/2015 11:52 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 09/14/2015 10:14 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POF Nercida Cepeda	09192	950183	042 PCT
2. POM Gilberto Rodriguez	31673	953331	042 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Christophe Britton	00229	952496	042 PCT
2. POM Bernard Castillo	17033	957431	042 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Gilberto Rodriguez	Abuse: PO Gilberto Rodriguez threatened to arrest § 87(2)(b)	A . Unsubstantiated
§ 87(4-b) § 87(2)(g)	§ 87(4-b) § 87(2)(g)	

Case Summary

On September 7, 2015, § 87(2)(b) filed this complaint with IAB via telephone. This case was received by the CCRB on September 14, 2015.

On December 6, 2015, at approximately 9:05 p.m., PO Gilberto Rodriguez and PO Nercida Cepeda of the 42nd Precinct arrived at § 87(2)(b) in the Bronx, in regards to a 911 call. PO Christopher Britton and PO Bernard Castillo also responded to the scene to assist PO § 87(2)(b) and PO Cepeda. § 87(2)(b) complained to the officers that she was being harassed by teenage girls in her building. However, PO Rodriguez threatened to arrest § 87(2)(b) if she did not go to the hospital (**Allegation A**). § 87(2)(b) was subsequently placed in an ambulance and transported to § 87(2)(b) for § 87(2)(b). § 87(2)(g), § 87(4-b)

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was determined to be unsuitable for mediation because § 87(2)(b) stated that she planned on filing a lawsuit (Board Review 01).
- On January 12, 2016, the NYC Comptroller's Office indicated via email that § 87(2)(b) has not filed a Notice a Claim in regards to this incident (Board Review 15).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (Board Review 16).
- PO Rodriguez has been a member of the NYPD for three years and has had one previous CCRB allegation pleaded to him which was not substantiated. § 87(2)(g)
- PO Cepeda has been a member of the NYPD for four years and has had three previous CCRB allegations pleaded against her; one of which has been substantiated.
 - PO Cepeda was substantiated for an improper frisk in connection with CCRB 201301780. The Board recommended charges; Officer Cepeda ultimately received instructions.

Findings and Recommendations

Explanation of Subject Officer Identification

On December 11, 2015, during a follow up call for additional information, § 87(2)(b) stated that the subject officer was a Hispanic male with thinning hair. § 87(2)(b) provided two photos she took of the subject officer during the incident. The two photos were blurry, but there

Allegation A –Abuse of Authority: PO Gilberto Rodriguez threatened to arrest § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) provided two statements to the CCRB (Board Review 01 and 18). In her initial statement, § 87(2)(b) stated that she called 911 for assistance to gain entry into her apartment and also complained about teenagers harassing her (Board Review 01). The EVENT indicated that § 87(2)(b) only reported about an assault that occurred a day prior to the incident (Board Review 09). Moreover, another EVENT generated for the location indicated that there was a report of “an aided female with a screwdriver and a knife threatening children” (Board Review 10). In § 87(2)(b)'s initial CCRB testimony, admitted that she was holding a screwdriver and knife when the officers arrived. However, during the follow up call to § 87(2)(b) for further information she denied having the screwdriver and knife when the officers arrived (Board Review 18). During the same follow up call, § 87(2)(b) alleged that PO Rodriguez, identified via the investigation, told her that she had to accompany them to the hospital or she would be arrested. § 87(2)(b) assumed that she was being transported for her injuries, § 87(2)(b)

PO Rodriguez explained that he has had prior interactions with § 87(2)(b) constantly calling 911 to complain about children playing in front of her window (Board Review 05). He further stated that during the summertime, § 87(2)(b) would call approximately three or four times a day. During PO Rodriguez's previous interactions, he has repeatedly told § 87(2)(b) that he could not do anything about her complaint against the children and as a result she has been removed to a psychiatric ward for evaluation. On the date of incident, PO Rodriguez responded in regards to a report of an Emotionally Disturbed Person case (10-54). PO Rodriguez did not recall any additional information besides a report of an Emotionally Disturbed Person. Moreover, was not aware of anyone in possession of a knife or screwdriver at the location. However, PO Rodriguez stated that a person could be arrested in regards to the information noted in the EVENT. Once at the location PO Rodriguez spoke to witnesses and § 87(2)(b) who was angry at the time. The civilian witnesses expressed their concerns about § 87(2)(b) screaming at the children. PO Rodriguez determined § 87(2)(b) to be emotionally disturbed due to her history, her yelling, § 87(2)(b). Moreover, PO Rodriguez stated that the EMS on scene also determined that § 87(2)(b) had to be removed to the hospital. PO Rodriguez told § 87(2)(b) that she had to go to the hospital. § 87(2)(b) complied and walked into the ambulance. PO Rodriguez denied § 87(2)(b) refused to go to the hospital and denied threatening to arrest § 87(2)(b) at any point during the incident. PO Rodriguez stated that an Emotionally Disturbed Person cannot be arrested if they refuse to go to the hospital.

Page 3

CCRB Case # 201507805

Similar to PO Rodriguez, PO Cepeda has had prior interactions with § 87(2)(b) in which § 87(2)(b) had been removed to a hospital for psychiatric evaluation (Board Review 08). § 87(2)(g) PO Cepeda stated that § 87(2)(b) initially verbally refused to go in the ambulance. In response, PO Cepeda told § 87(2)(b) that if she did not go willingly then she would have to place her in handcuffs in order to take her to the hospital. § 87(2)(b) subsequently complied and walked into the ambulance on her own accord. PO Cepeda denied hearing PO Rodriguez threaten to arrest § 87(2)(b) at any point during the incident. Moreover, PO Cepeda stated that § 87(2)(b) could not have been arrested during the incident because she was determined to be an Emotionally Disturbed Person who had to be removed to the hospital.

PO Castillo, identified via the investigation as one of the additional responding officers, did not have any independent recollection of the incident (Board Review 06).

§ 87(2)(g) It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

§ 87(4-b), § 87(2)(g)

Squad:

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date